

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

Civil Action No. 16-CV-715

JESSICA BENN,

Plaintiff,

v.

Denver Police District Commander ANTONIO LOPEZ, and
the CITY AND COUNTY OF DENVER, COLORADO,

Defendants.

COMPLAINT AND JURY DEMAND

Now comes Plaintiff, Jessica Benn, by and through her attorneys, LOEVY & LOEVY, and hereby complains of Defendants Denver Police Commander Antonio Lopez, and City and County of Denver, Colorado, and states as follows:

Introduction

1. This is a civil rights action challenging as unconstitutional the Denver Police Department's unlawful seizure and deprivation of Jessica Benn's property, premised upon the exercise of her First Amendment rights in gathering information on the conduct of police officers performing their official duties in a public place.

2. On April 29, 2015, Ms. Benn recorded the actions of Denver police officers who were forcefully arresting people during a public demonstration against police brutality in downtown Denver.

3. Without any justification whatsoever, Denver District Commander Antonio Lopez took Ms. Benn's cell phone away from her while she was recording these public and newsworthy events. He never returned her phone.

4. Defendant Lopez's actions violated Ms. Benn's right under the First Amendment to the United States Constitution to record government officers performing their official duties in public. The First Amendment protects the right to gather, receive, record, and disseminate information and news on matters of public importance relating to civil liberties and civil rights, including the official actions of police officers in public.

5. Defendant Lopez's actions also violated Ms. Benn's right to be free from illegal searches and seizures under the Fourth Amendment to the United States Constitution, and her right to be free from the deprivation of her property without due process under the Fourteenth Amendment to the United States Constitution.

6. Plaintiff Jessica Benn now brings this action pursuant to 42 U.S.C. § 1983 to redress the deprivation under color of law of her rights as secured by the United States Constitution.

Jurisdiction

7. This court has jurisdiction of this action pursuant to 28 U.S.C. § 1331.

8. Venue is proper under 28 U.S.C. § 1391(b). All parties reside in this judicial district, and the events giving rise to the claims asserted herein occurred in this judicial district.

The Parties

9. Plaintiff Jessica Benn is a citizen of the United States and a resident of Fort Collins, Colorado. She is employed as a research associate and is the mother of a young infant.

10. Defendant Antonio Lopez is a citizen of the United States, a resident of Colorado, and was and is a District Commander in the Denver Police Department. At all relevant times, Defendant Lopez was employed by the Denver Police Department and was acting within the scope of his employment and under the color of law.

11. Defendant City and County of Denver (the “City”) is a Colorado municipal corporation. At all relevant times, it employed Defendant Lopez. The City is responsible for the supervision, training, policies, customs and practices of the Denver Police Department.

Plaintiff Witnesses and Records Police Misconduct in Public

12. On April 29, 2015, Plaintiff Jessica Benn participated in a peaceful demonstration against police brutality in downtown Denver, Colorado, in the vicinity of Broadway and Colfax. The demonstration was intended to show

solidarity with the people of Baltimore and Freddie Gray, a man who died as a result of injuries sustained at the hands of Baltimore police officers on April 19, 2015. Ms. Benn was wearing a shirt that said “Black Lives Matter” and carried a sign that read, “White Silence is Violence.” Ms. Benn was with a number of other peaceful demonstrators, including her husband, Jesse Benn.

13. At one point during the demonstration, Denver police officers began ordering arrests of scores of demonstrators for no apparently justifiable reason and with no warning. Jesse Benn was one of those standing nearby who was arrested. Mr. Benn was using a camera to film the demonstration and the police at the time.

14. Some of the police officers used unreasonable force on some of the demonstrators they arrested, including Mr. Benn. At least two Denver police officers in SWAT gear tackled Mr. Benn and dragged him across the pavement. Another Denver police officer put his knee into Mr. Benn’s back, cuffed him, and smashed his face into the street while saying “This is what you wanted,” and calling him “dumb ass” and other insults.

15. The Denver police also pepper sprayed demonstrators, including a 12-year-old boy. Mr. Benn and other demonstrators were injured as a result of the officers’ actions.

16. Jessica Benn had been filming the demonstration and the actions of the police officers on her cell phone. Her purpose for filming was to document the actions of the demonstrators and the police, to gather news and information about

the actions of police toward the demonstrators and demonstrators toward the police, and to disseminate information about newsworthy events via nontraditional journalistic media.

17. Until April 29, 2015, Ms. Benn and her husband had regularly attended protests and demonstrations. They believed that the mainstream news media and official police accounts of these gatherings were often inaccurate and reported violence by protestors when protestors did not engage in any such acts. Ms. Benn wanted to gather information about the actions of police by recording them so that there would be objective documentation of what occurred at the demonstration, and so that she could communicate this message to the public. For example, at a previous demonstration, Ms. Benn had witnessed Denver police officers taunting the mother of a victim of a police shooting. Ms. Benn disagreed with police actions of this kind and she wanted to document and publicize such actions by police officers.

18. When police officers began arresting her husband Jesse and other demonstrators on April 29, 2015, Ms. Benn recorded the incident with her cell phone. She was standing on the public sidewalk. The fact that she was recording the actions of the officers was obvious to anyone because she had her arm outstretched with her phone in it.

19. When she was recording the actions of the officers, Ms. Benn was standing at a comfortable remove from them. At no time did she do anything to interfere or attempt to interfere with the officers. At no time did she harass the

officers or distract them from conducting their arrests. Nor did any officer ask Ms. Benn to stop recording, step back, or leave the area.

20. As Ms. Benn was peacefully recording, Denver Police District Commander Antonio Lopez told another police officer to arrest her by saying words to the effect of “grab her,” referring to Ms. Benn. Without saying a word to her, Defendant Lopez walked up to Ms. Benn and snatched her phone out of her hand as she was recording.

21. The other officer, believed to be Sergeant Dixon, forcefully pushed Ms. Benn up against a bus with a baton.

22. Ms. Benn told Sergeant Dixon that her phone was just taken and asked why. Sergeant Dixon did not respond. Only when Ms. Benn informed him that she was pregnant and asked him not to hurt her did Sergeant Dixon let her go. Fortunately, Ms. Benn was not arrested.

23. Ms. Benn never got her cell phone back, despite contacting the Denver Police property department on several different occasions in an attempt to locate it.

24. Ms. Benn recorded events that were a matter of public concern, given that they involved police officers performing their official duties in public. She recorded the events that day because she did not think that the officers’ actions were proper, she believed that the arrests should be documented, she was critical of the officers’ actions, and she wanted to disseminate this information and message to the public.

25. At no time did Defendant Lopez have any reason to suspect that Ms. Benn had committed or was committing any crime.

26. At no time did Defendant Lopez have any lawful justification for seizing Ms. Benn's cell phone. He did not have a warrant, exigent circumstances, or consent for seizing Ms. Benn's cell phone.

27. The only reason that Defendant Lopez took Ms. Benn's cell phone was to retaliate against her for filming the improper actions of the police.

28. Ms. Benn made a complaint to the Internal Affairs Division of the Denver Police Department about the unlawful seizure of her phone. Unfortunately, the Defendant City and County of Denver (the "City") failed to discipline Defendant Lopez in any way for his unreasonable and unlawful actions. Ms. Benn brings this lawsuit to seek redress for the violation of her constitutional rights.

Importance of Citizen Recordings of the Police

29. While most police officers perform their duties in a lawful manner, some police officers abuse their authority. In many cases, the only evidence of what happened during an encounter between police officers and civilians—including whether police officers and/or civilians behaved lawfully—will be the conflicting testimony of police officers and civilians.

30. Indeed, on many occasions in the last decade, audio/video recordings made by civilians of police-civilian encounters have helped to resolve testimonial disputes about alleged police misconduct. Sometimes these audio/video recordings

have tended to disprove allegations of police misconduct, and sometimes they have tended to prove allegations of police misconduct.

31. Public protests and demonstrations are newsworthy events, and arrests taking place at these events are especially newsworthy. Recordings often provide the only objective evidence of the behavior of demonstrators, protestors, and police officers.

32. The right of citizens to record police officers performing their public duties is so important that the United States Department of Justice (“DOJ”) has explicitly reinforced this message. It has done so by intervening in at least two recent cases as part of its responsibility to enforce federal civil rights statutes that prohibit state and local law enforcement agencies from engaging in conduct that deprives persons of their rights under the Constitution and laws of the United States. The DOJ has explained, “[t]he right to record police officers while performing duties in a public place, as well as the right to be protected from the warrantless seizure and destruction of those recordings, are not only required by the Constitution,” they “are consistent with our fundamental notions of liberty, promote the accountability of our government officers, and instill public confidence in the police officers who serve us daily.” Statement of Interest of the United States [Dkt. 24], *Sharp v. Baltimore City Police Dep’t*, No. 1:11-CV-02888-BEL (D. Md. Jan. 10, 2012) at 1; *see also* Statement of Interest of the United States [Dkt. 15],

Garcia v. Montgomery County, Maryland, et al., 8:12-CV-3592-JFM (D. Md. Mar. 4, 2013).

**Defendant City's Failure to Provide Any Policies, Training, or Supervision,
and the Widespread Practices of Denver Police Officers**

33. The misconduct described herein was undertaken pursuant to the policy of the Defendant City and its Police Department in that, at the time of the events in this case, the City and the Department had inadequate policies guiding Denver police officers on civilians' First Amendment right to audio or video record officers who are conducting their official duties in public. In fact, the City's policies were not only inadequate, but they were non-existent.

34. For instance, at the time of the events in this case, the Operations Manual for the Denver Police Department contained not a single policy or statement instructing officers that members of the public have the right to record police officers in public doing their duties; that officers may not interfere with civilians recording or attempting to record their public performance of their duties; or that officers may not unlawfully confiscate, search, or seize civilians' recording devices.

35. At the time of the events in this case, the City and the Department had no policies, procedures, rules or regulations relating to: Denver police officers' obligation not to interfere with civilians' peaceful recording of their official duties in public; civilians' First Amendment right to record police conducting their official

duties in public; or civilians' rights to keep their recordings and recording devices free from unlawful search and seizure.

36. The misconduct described herein also was undertaken pursuant to the policy of the Defendant City and its Police Department in that, at the time of the events in this case, the City and the Department had inadequate training and supervision guiding Denver police officers on civilians' First Amendment right to audio or video record officers who are conducting their official duties in public. The City's training and supervision was not only inadequate, but it was non-existent. At all times relevant herein, the City and the Department provided no training or supervision to Denver police officers relating to: their obligation not to interfere with civilians' peaceful recording of their official duties in public; civilians' First Amendment right to record police conducting their official duties in public; or civilians' Fourth and Fourteenth Amendment rights to keep their recordings and recording devices free from unlawful search and seizure.

37. The Defendant City and its Department chose not to implement any such policies, training, or supervision even though the need for such policies, training, and supervision was obvious, given the frequency with which police officers conduct their business in public and the ubiquity of personal electronic devices such as cell phones and tablets equipped with cameras.

38. At all times relevant herein, the importance of and need for such policies, training, and supervision was known and obvious to the final policymakers

of the City and Department. The policymakers for the City and the Department knew of these problems, allowed them to continue, and made decisions not to implement adequate policies, training, or supervision.

39. The constitutional violations complained of by Ms. Benn were a highly obvious and predictable consequence of a failure to equip Denver police officers with the specific tools—including policies, training and supervision—to handle the recurring situation of how to handle civilians who are recording officers in public doing their duties. Knowing that such policies, training and supervision were necessary and declining to implement any demonstrates deliberate indifference on the part of the City and its Department toward persons with whom its officers come into contact.

40. In addition, the misconduct described herein was undertaken pursuant to the policy and widespread practice and custom of the Defendant City and its Department in that, at all times relevant herein, Denver police officers regularly threatened subjects who were about to record them, detained subjects who were recording them, seized the devices used for recording, improperly searched the devices, and/or deleted or attempted to delete the recordings.

41. For instance, in August 2014, Denver police unlawfully detained a civilian, Levi Frasier, who was recording officers punching an unarmed person in the face in public. Denver police unlawfully searched Mr. Frasier's tablet and unlawfully threatened him with arrest.

42. Furthermore, in the immediate aftermath of the Denver police shooting of Jessica Hernandez in January 2015, a witness tried to video-record the officers' actions in public while she was standing on her own property. The officers threatened the witness and ordered her not to record them.

43. The above-described widespread practice was so well-settled as to constitute *de facto* policy in the Denver Police Department, and it was allowed to exist because municipal policymakers with authority over the same exhibited deliberate indifference to the problem, thereby effectively ratifying it.

44. All of the above-described policies and practices of the Defendant City and its Department, individually and collectively, were the moving force behind the misconduct described herein and the violation of Ms. Benn's rights. If the Defendant City and its Department had provided adequate policies, training, and/or supervision to its police officers informing them that civilians have a right to record them doing their duties in public, the Defendant Officers would not have violated Ms. Benn's rights in the manner alleged herein.

45. It was not until November 2015 that the Defendant City finally created a policy in the Police Department instructing officers to respect the First and Fourth Amendment rights of those recording them. This policy, in the Denver Police Department Operations Manual, says in part:

(3) RIGHTS OF THE PUBLIC TO OBSERVE AND RECORD POLICE ACTIVITIES:

Members of the public, including but not limited to media representatives and bystanders, have a First Amendment right to observe and record officers in public places, as long as their actions do not interfere with the officer's duties or the safety of officers or others. Officers should assume that they are being recorded at all times when on-duty in a public space. ...

- a. Persons who are in public spaces or locations where they have a legal right to be present—such as ... parks and sidewalks, have a First Amendment right to record things in plain sight or hearing, to include police activity.
- b. Officers may not threaten or intimidate individuals who are recording police activities, nor will they discourage or interfere with the recording of police activities. ...

(5) SEARCH AND SEIZURE OF RECORDING DEVICES AND MEDIA—
OFFICER AND SUPERVISOR RESPONSIBILITIES:

- a. Warrant requirement: Absent the arrest of the recording party, recording equipment and media may not be confiscated without a warrant or exigent circumstances. ...

46. The Defendant City did not adopt this policy in response to any change in the law between April 2015 and November 2015.

47. The Defendant City adopted this policy only in response to news reports of Denver police officers violating the First and Fourth Amendment rights of members of the public who were recording or attempting to record the police, such as those referenced above.

48. The fact that the Defendant City adopted this policy shows that final policymakers knew that this was a subject matter on which policy, instruction, training, and supervision of its officers was needed. The failure of the Defendant City to adopt any policy, training or supervision on this topic prior to the events at

issue shows that it was deliberately indifferent to the likelihood that civilians' constitutional rights would be violated.

Legal Claims

Count I: 42 U.S.C. § 1983 – First Amendment

49. Plaintiff incorporates each paragraph of this Complaint as if restated fully herein.

50. In the manner described more fully above, Defendant Lopez, under color of law and within the scope of his employment, violated Plaintiff's rights as secured by the First Amendment of the U.S. Constitution. Plaintiff's act of recording the police officers' actions in public constituted protected speech, expression, and news-gathering under the First Amendment.

51. The right to gather, receive, record, and disseminate information is grounded in the Free Speech Clause of the First Amendment. This right is further grounded in: the Petition Clause of the First Amendment, if the purpose of gathering, receiving, or recording the information is to use it to petition government for redress of grievances; and the Free Press Clause of the First Amendment, if the purpose of the gathering, receiving, or recording the information is to publish and disseminate it to other people.

52. This First Amendment right to gather, receive, record, and disseminate information includes the right to audio and video record police officers performing their duties in public.

53. Police officers performing their public duties in public places have no reasonable expectation that their conduct is private and will not be recorded, published, and disseminated.

54. In the manner described more fully above, Defendant Lopez's actions caused her injury that would chill a person of ordinary firmness from continuing to engage in protected activity.

55. In the manner described more fully above, Defendant Lopez's actions were substantially motivated as a response to Plaintiff's constitutionally protected activity. Defendant Lopez would not have taken Plaintiff's cell phone away or ordered another officer to "grab her" and arrest her in the absence of Plaintiff's protected First Amendment activity.

56. In the manner described more fully above, the misconduct described in this Count was undertaken pursuant to the policies and practices of the Defendant City and its Department.

57. In the manner described more fully above, the policies and practices of the Defendant City and its Department were the moving force behind the misconduct described in this Count and the violation of Plaintiff's rights.

58. The Defendant City is liable because the violation of Plaintiff's rights as described in this Count was caused by the policies, practices, or customs of the relevant policymakers for the City.

59. In the manner described more fully above, in light of the frequency with which officers conduct their official duties in public and the ubiquity of personal electronic devices with cameras, the need for policies, training, and supervision of Denver police officers on how to interact with civilians who are recording them was so obvious, and the inadequacy so likely to result in the violation of constitutional rights, that the policymakers of the Defendant City can reasonably be said to have been deliberately indifferent to the need.

60. As a direct and proximate result of Defendants' actions, Plaintiff's constitutional rights were violated, entitling her to declaratory relief. Plaintiff also suffered damages, entitling her to compensatory damages against the Defendants. Plaintiff is also entitled to punitive damages against Defendant Lopez to redress his willful, malicious, wanton, and reckless conduct in violation of Plaintiff's civil rights.

Count II: 42 U.S.C. § 1983 – Fourth Amendment

61. Plaintiff incorporates each paragraph of this Complaint as if restated fully herein.

62. In the manner described more fully above, Defendant Lopez, under color of law and within the scope of his employment, violated Plaintiff's rights

against unreasonable searches and seizures to her property as secured by the Fourth Amendment of the U.S. Constitution.

63. Specifically, Defendant Lopez seized Plaintiff's cell phone without her consent, a warrant, probable cause, exigent circumstances, or any legal justification whatsoever.

64. Defendant Lopez did not have a warrant authorizing any seizure of Plaintiff's cell phone.

65. Defendant Lopez did not have probable cause, reasonable suspicion, or exigent circumstances for seizing Plaintiff's cell phone.

66. Defendant Lopez did not have Plaintiff's consent to seize her cell phone.

67. In the manner described more fully above, the misconduct described in this Count was undertaken pursuant to the policies and practices of the Defendant City and its Department.

68. In the manner described more fully above, the policies and practices of the Defendant City and its Department were the moving force behind the misconduct described in this Count and the violation of Plaintiff's rights.

69. The Defendant City is liable because the violation of Plaintiff's rights as described in this Count was caused by the policies, practices, or customs of the relevant policymakers for the City.

70. In the manner described more fully above, in light of the frequency with which officers conduct their official duties in public and the ubiquity of personal electronic devices with cameras, the need for policies, training, and supervision of Denver police officers on how to interact with civilians who are recording them was so obvious, and the inadequacy so likely to result in the violation of constitutional rights, that the policymakers of the Defendant City can reasonably be said to have been deliberately indifferent to the need.

71. As a direct and proximate result of Defendant's actions, Plaintiff's constitutional rights were violated, entitling her to declaratory relief. Plaintiff also suffered damages, entitling her to compensatory damages against the Defendants. Plaintiff is also entitled to punitive damages against Defendant Lopez to redress his willful, malicious, wanton, and reckless conduct in violation of Plaintiff's civil rights.

Count III: 42 U.S.C. § 1983 – Fourteenth Amendment

72. Plaintiff incorporates each paragraph of this Complaint as if restated fully herein.

73. In the manner described more fully above, Defendant Lopez, under color of law and within the scope of his employment, violated Plaintiff's rights against deprivation of property without due process of law in violation of the Fourteenth Amendment of the U.S. Constitution.

74. The Fourteenth Amendment of the U.S. Constitution protects Plaintiff against deprivation of her property by state or local governments without notice and an opportunity to be heard.

75. In the manner described more fully above, Defendant Lopez permanently deprived Plaintiff of her personal property when he snatched her cell phone from her.

76. Plaintiff was afforded no opportunity to contest this deprivation of property before it occurred.

77. Defendant Lopez thus violated Plaintiff's right to pre-deprivation process guaranteed by the Fourteenth Amendment of the U.S. Constitution.

78. As a direct and proximate result of Defendant's actions, Plaintiff's constitutional rights were violated, entitling her to declaratory relief. Plaintiff also suffered damages, entitling her to compensatory damages against the Defendants. Plaintiff is also entitled to punitive damages against Defendant Lopez to redress his willful, malicious, wanton, and reckless conduct in violation of Plaintiff's civil rights.

Count IV: Colorado State Law – Indemnification

79. Plaintiff incorporates each paragraph of this Complaint as if restated fully herein.

80. Colorado law provides that the Defendant City and County of Denver is directed to pay any judgment for compensatory damages for which its employees are liable within the scope of their employment activities.

81. Defendant Lopez was an employee of the Defendant City and County of Denver and acted within the scope of his employment at all times relevant in committing the actions and omissions described herein.

WHEREFORE, Plaintiff, Jessica Benn, respectfully requests that this court enter judgment in her favor and against Defendants Antonio Lopez and City and County of Denver, awarding her:

- a) a declaratory judgment that Plaintiff's expressive and newsgathering activity of recording Denver Police officers performing their official duties in a public place was constitutionally protected under the First Amendment, that Plaintiff's First Amendment right was violated by the Defendants, and that this First Amendment right was clearly established as of April 29, 2015;
- b) a declaratory judgment that Plaintiff's rights under the Fourth Amendment to be free from unlawful seizure of her property was violated by the Defendants, and that these rights were clearly established as of April 29, 2015;
- c) a declaratory judgment that Plaintiff's rights under the Fourteenth Amendment to be free from unlawful deprivation of her property without

the opportunity to be heard was violated by the Defendants, and that these rights were clearly established as of April 29, 2015;

- d) compensatory damages against all Defendants;
- e) punitive damages on her federal claims against Defendant Lopez;
- f) attorneys' fees and costs on all claims as allowed by law; pre- and post-judgment interest at the lawful rate; and any further relief as this court deems just and appropriate.

JURY DEMAND

Plaintiff, Jessica Benn, hereby demands a trial by jury pursuant to Federal Rule of Civil Procedure 38(c) on all issues so triable.

Respectfully submitted,

JESSICA BENN

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